

(29)

Tentative Ruling

Re: ***Yokley v. Dave & Buster's of California***
Superior Court Case No. 23CECG05053

Hearing Date: July 1, 2026 (Dept. 503)

Motion: Petition to Compromise Minor's Claim

Tentative Ruling:

To grant the petition and sign the proposed order. No appearances necessary.

The court sets a status conference for Tuesday, September 29, 2026, in Department 503, for confirmation that the minor's funds have been invested as set forth in the petition. If petitioner files a declaration or documentation, at least five court days before the status conference, showing that the funds have been invested as ordered, the status conference will come off calendar.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 6/29/2026.
(Judge's initials) (Date)

(48)

Tentative Ruling

Re: ***Garcia v. Raven et al.***
Superior Court Case No. 22CECG01233

Hearing Date: July 1, 2026 (Dept. 503)

Motion: By Plaintiff to Enforce Settlement; to Compel Initial Response to Request for Production, Set One; and Request for Sanctions

Tentative Ruling:

To deny the motion to enforce settlement, without prejudice.

To grant plaintiff David Garcia's motion to compel defendants Angelie Raven and Mark Raven to provide verified responses to Demand for Production of Documents, Set One. (Code Civ. Proc., § 2031.300, subd. (b).) Defendants Angelie Raven and Mark Raven are ordered to serve complete verified responses to the discovery set forth above, without objections, and produce all responsive documents, within 10 days of the clerk's service of the minute order.

To impose monetary sanctions in favor of plaintiff David Garcia and against defendants Angelie Raven and Mark Raven. (Code Civ. Proc., §§ 2023.010, subd. (d), 2031.300, subd. (c).) Defendants Angelie Raven and Mark Raven are ordered to pay \$860.00 in total sanctions to counsel for Plaintiff within 30 days of the clerk's service of the minute order.

Explanation:

Enforce Settlement

Code of Civil Procedure, section 664.6 provides in relevant part:

If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement.

(Code Civ. Proc., § 664.6, subd. (a).)

On July 8, 2025, plaintiff David Garcia ("Plaintiff") and defendants Angelie Raven and Mark Raven ("Defendants") entered into a written stipulation outside the presence of the court to settle this action. The settlement agreement was executed by all parties and their counsel. As part of the stipulation, the parties agreed that the agreement may be enforced under Code of Civil Procedure section 664.6.

Plaintiff alleges that Defendants have failed to follow the terms of the agreement, and seeks to enforce the settlement under Code of Civil Procedure section 664.6. Plaintiff

declares that the Defendants communicated that the subject properties were sold as of January 1, 2026. Plaintiff has not received any proceeds from the sale pursuant to the settlement agreement. It was agreed that defendant Angelie Raven was to receive a fixed sum of \$400,000 from the sale, and Plaintiff was to receive the remaining balance. The settlement agreement states the sales commission and closing costs were to be paid from the proceeds of the sale before funds are disbursed to the parties, and that the payment of the settlement amount shall be made as soon as reasonably possible. Plaintiff declares that defendant Angelie Raven has received the funds from the sale of the property and is delaying the disbursement of the funds until she receives notice from the Internal Revenue Service regarding her tax return for 2025. The terms do not reflect that Plaintiff's funds were to be withheld subject to the Defendants' tax returns. Thus, defendants Angelie Raven and Mark Raven have breached the settlement agreement.

However, the proposed judgment and amount owed to Plaintiff remains yet uncertain. As noted above, the balance of the proceeds of the sale are due and owing to Plaintiff, which has yet to be determined. Without a sum certain, judgment thereupon would equally be uncertain. Plaintiff appears to acknowledge this in any event, and seeks further discovery as to the issue. Accordingly, the motion to enforce the settlement is premature, and therefore denied without prejudice.³ The issue of fees to enforce the settlement is reserved for any further proceedings.

Compel Responses

Where a party fails to serve a timely response to interrogatories or demand for inspection, copying, testing, or sampling, the propounding party may move for an order compelling response. (Code Civ. Proc., §§ 2030.290, subd. (b), 2031.300, subd. (b).) A party that fails to serve a timely response to interrogatories or an inspection demand waives "any objection" to the request. (*Id.*, §§ 2030.290, subd. (a), 2031.300, subd. (a).)

In the case at bench, on February 27, 2026, Plaintiff served a Demand for Production of Documents, Set One on Defendants by electronic service and mail. Defendants were required to respond by March 31, 2026. Defendants failed to timely produce the requested discovery. Defendants have not opposed the present motion. Therefore, Plaintiff is entitled to an order compelling Defendants to respond to the discovery at issue. (Code Civ. Proc., § 2031.300, subd. (b).) All objections are waived. (*Id.*, § 2031.300, subd. (a).)

Sanctions

If the party asks for monetary sanctions against the party who failed to respond to a request for production, the court shall impose a monetary sanction against the losing party on the motion to compel unless it finds that the one subject to the sanction acted with substantial justification or circumstances make the sanctions unjust. (Code Civ. Proc., § 2031.300, subd. (c).) Sanctions must be for reasonable expenses in enforcing discovery, including attorney's fees. (*Id.*, § 2031.300, subd. (a).)

³ Further, the proposed judgment does not appear to match the terms of the settlement. Specifically, there is no provision in the proposed judgment that pays anything from sale of the real property in question to Plaintiff, sum certain or otherwise.

Counsel for Plaintiff submits that their hourly rate is \$400.00 per hour for five hours. The court approves the hourly rates as reasonable. The court imposes sanctions against Defendants in the reduced amount of \$860.00, inclusive of the \$60.00 in filing fees.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS on 6/29/2026.
(Judge's initials) (Date)